



Circumstantial Evidence

Overview

The three main types of evidence presented in connection with equal employment opportunity complaints are circumstantial evidence, direct evidence, and statistical evidence. Direct evidence is relatively rare, and relevant statistical evidence is not available in most cases. Therefore, circumstantial evidence frequently is used to prove claims of employment discrimination.

Circumstantial evidence does not stand alone in establishing that discrimination occurred but is instead presented in an effort to show that a discriminatory motive should be deduced from a consideration of the facts in context.

This Quick Start Guide covers the following Key Points:

1. [Defining circumstantial evidence](#)
2. [Circumstantial evidence in EEO cases](#)
3. [McDonnell Douglas analysis](#)
4. [Case examples](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

Defining circumstantial evidence

- Circumstantial evidence is defined as: Indirect evidence, or secondary facts by which a principal fact may be rationally inferred. It is evidence that seeks to prove the existence of other facts through a process of inference. It also includes testimony not based on actual personal knowledge or observation of the facts in controversy, but of other facts from which deductions are drawn, showing indirectly the facts sought to be proved. **cyberFEDS®** [glossary](#).
- Circumstantial evidence: Evidence based on inference and not on personal knowledge or observation. *Black's Law Dictionary* (9th ed. 2009).
- "Evidence that merely 'suggests discrimination, leaving the trier of fact to infer discrimination based on the evidence' is, by definition, circumstantial." *Ingalsbe v. Department of Homeland Security*, [106 LRP 27043](#) (N.D. Ga. 2006), *citing Earle v. Champion Int'l Corp.*, 907 F.2d 1077 (11th Cir. 1990).
- "If an alleged statement at best merely suggests a discriminatory motive, then it is by definition only circumstantial evidence." *Schoenfeld v. Department of the Interior*, [99 FEOR 7059](#), 168 F.3d 1257 (11th Cir. 1999), *citing Burrell v. Board of Trustees of Georgia Military College*, 125 F.3d 1390 (11th Cir. 1997).
- Circumstantial evidence of discriminatory animus may include suspicious timing, ambiguously discriminatory statements, preferential behavior toward other employees, evidence that similarly situated non-protected employees were treated more favorably, or evidence of pretext. *Sambrano v. Department of the Navy*, [110 LRP 73330](#) (N.D. Ill. 2010).

Circumstantial evidence in EEO cases

- In employment discrimination cases involving circumstantial evidence, the fact finder examines all of the evidence and makes an inference as to whether discrimination occurred. Unlike with direct evidence, belief of circumstantial evidence alone does not resolve the case, but it permits a decision based on inference.
- Where direct evidence of discrimination is not available, a Title VII plaintiff may present circumstantial evidence of discrimination sufficient to create a jury question. *Rainey v. Department of Justice, Federal Bureau of Prisons*, [111 LRP 9948](#) (11th Cir. 2011, *unpublished*).
- **Hadley:** Disparate treatment claims involving circumstantial and direct evidence do not involve two separate and distinct theories of discrimination. In both cases, the complainant is alleging that the employer intentionally used a protected basis in making an employment decision. "The use of circumstantial and direct evidence presents two methods of analyzing the issue of motive, depending on the nature of the available evidence in a given case." [Hadley Guide to Federal Sector Equal Employment Law and Practice Theories of Discrimination -- Intentional Discrimination](#).
- "Title VII prohibits race discrimination against all persons, including Caucasians." Although some courts "take the position that if a White person relies on circumstantial evidence to establish a reverse discrimination claim, he or she must meet a heightened standard of proof," the EEOC "applies the same standard of proof to all race discrimination claims, regardless of the victim's race or the type of evidence used." [EEOC Compliance Manual, Section 15: Race and Color Discrimination](#).

McDonnell Douglas analysis

- The long-established framework for establishing disparate treatment discrimination with circumstantial evidence is provided by *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).
- **Hadley:** As far as cases involving circumstantial evidence in general and disparate treatment in particular are concerned, they all begin with some variation of *McDonnell Douglas*. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Circumstantial Evidence Cases](#).
- Under *McDonnell Douglas*, a complainant must first establish a prima facie case by presenting enough evidence to raise an inference of discrimination. The agency may then attempt to rebut the complainant's prima facie case by articulating a legitimate, nondiscriminatory explanation for its action. If the agency provides such an explanation, the complainant can still prevail by establishing b:

the preponderance of the evidence that the agency's stated reason for its action is pretext for discrimination. *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).

- **Hadley:** The facts that give rise to a prima facie case are those facts which "if unexplained reasonably give rise to an inference of discrimination." *Weinstein v. U.S. Postal Service*, [84 FEOR 20081](#), EEOC No. 01830674 (EEOC 1983). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Elements of Prima Facie Case.](#)
- **Hadley:** In most cases, complainants must rely on circumstantial evidence. The inquiry starts by requiring the complainant to present a set of facts that would support an inference of discrimination otherwise unexplained. Most often, this will involve a set of circumstances that reflect disparate treatment of employees in different protected categories. The theory is broad enough, though, to cover any set of circumstances that, if left unexplained, would support an inference of discrimination. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Elements of Prima Facie Case.](#)
- **Hadley:** The exact elements of the prima facie case vary depending on the factual situation involved. In most cases, the prima facie case will consist of the appellant demonstrating that he is a member of a protected class, that the agency took some employment action, and that, in taking the action, the agency treated the appellant differently than similarly situated employees outside of the protected class. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Elements of Prima Facie Case.](#)
- For more on the *McDonnell Douglas* analysis, see the [Quick Start Guide: McDonnell Douglas Analysis.](#)

Case examples

- A mail processing clerk for the U.S. Postal Service established a prima facie case of reprisal. The day after the clerk's supervisor completed an affidavit in connection with the clerk's EEO complaint, the supervisor set up an investigative interview regarding the clerk's attendance and informed her that the interview could lead to discipline or removal. Because the agency failed to provide an explanation for the interview, the clerk prevailed on her claim of reprisal. *Mercedes A. v. U.S. Postal Service*, [122 LRP 22893](#), EEOC No. 2021001289 (EEOC OFO 2022).
- The EEOC noted that a Federal Aviation Administration question and answer document about rehiring arguably could have been direct evidence of age discrimination. However, it decided not to address the matter because the complainant established his claim that he was selected for a GS-12 position because of his age through circumstantial evidence - the agency's explanation for its hiring decision was shown to be pretextual. *Brenton W. v. Department of Transportation, Federal Aviation Administration*, [117 LRP 26953](#), EEOC No. 0120130554 (EEOC OFO 2017).
- The African-American complainant presented circumstantial evidence sufficient to establish a prima facie case of race-based disparate treatment regarding his nonselection for a position. He was qualified for the position, as shown by his placement on the best qualified list of applicants; he was not selected for the position; and a Caucasian was selected. Although the agency provided an explanation for its decision, an AJ found it was pretext for discrimination. *Kitchen v. National Labor Relations Board*, [113 LRP 20816](#), EEOC No. 0720110017 (EEOC OFO 2013).
- An EEOC AJ found circumstantial evidence indicating that the complainant was among a group of "black-listed" employees, at least in part because she engaged in EEO activity and supported a coworker's EEO complaint. *Cortez v. Department of the Treasury*, [110 LRP 26048](#), EEOC No. 0720080039 (EEOC OFO 2010).
- The complainant's high-level performance appraisals praising his work and accomplishments, witness testimony affirming his superior qualifications, his leadership experience, and a selecting official's determination that he was the "strongest team leader" disproved the agency's claim that he lacked leadership skills. The EEOC found the circumstantial evidence, taken as a whole, was sufficient to establish he wasn't selected for a position because of his age. *DeForest v. Department of Energy, National Nuclear Security Administration*, [108 LRP 58025](#), EEOC No. 0120070681 (EEOC OFO 2008).
- The complainant provided circumstantial evidence by relating an incident during which her supervisor, an African-American woman, said she was "too light" and "can you believe a black person could be that light?" However, she failed to establish race discrimination by linking the comment to her removal for poor performance. *Roberts v. Executive Office of the President*, [108 LRP 9980](#), EEOC No. 0120061140 (EEOC OFO 2008).
- The complainant was subjected to discrimination on the basis of her national origin (Hispanic/Mexican-American) when she was not selected for an administrative support specialist position. Circumstantial evidence tended to show bias against Hispanic employees. This evidence, combined with differences in the testimony of interview panel members of the interview panel and the superior qualifications of complainant, led the EEOC to its finding of discrimination. *Villarruel v. Department of Justice, Drug Enforcement Administration*, [107 LRP 22422](#), EEOC No. 0120053427 (EEOC OFO 2007).

Other Resources

- [Quick Start Guide: Direct Evidence of Discrimination](#)
- [Quick Start Guide: Statistical Evidence](#)
- [Quick Start Guide: McDonnell Douglas Analysis](#)
- [Quick Start Guide: Disparate Treatment](#)

- For more guidance, see:
 - [*Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories Discrimination -- Intentional Discrimination, Subchapter 01 -- Circumstantial Evidence Cases*](#)
 - [*Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories Discrimination -- Intentional Discrimination, Subchapter 01 -- Circumstantial Evidence Cases, Section A -- Evolution of "Disparate Treatment" Theory, Subsection 01 -- Elements of Prima Facie Case*](#)

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